

23STCV28853 23STCV28853

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV28853 Hearing Date: September 9, 2026 Dept: D

DYLAN ALEXANDER LOPEZ. V. SUPERIOR COIN LAUNDRY, et al.

CASE NO.: 23STCV28853

HEARING: September 9,
2026

TENTATIVE ORDER

Petitioner Olga Miranda's
petition for approval of compromise of claim or action or disposition of
proceeds of judgment for minor or person with a disability Claimant Dylan
Alexander Lopez is CONTINUED to October 5, 2026, at 9:30am.

Petitioner Olga Miranda's
(Petitioner) brings this petition as the Guardian ad litem and parent of the
minor Dylan Alexander Lopez (Claimant).

Legal Standard

Compromises of disputed
claims brought by minors are governed in part by Code of Civil Procedure
section 372. The statute allows a
guardian ad litem to appear in court on behalf of a minor claimant and gives
the guardian ad litem the power to compromise the minor's claim "with the
approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise
must be verified by the petitioner and must contain a full disclosure of all
information that has any bearing upon the reasonableness of the compromise or

covenant. (California Rules of Court
(CRC) Rule 7.950.)

CRC Rule 7.952

subdivision (a) requires the attendance of the petitioner and claimant at the hearing on the compromise of the claim unless the court for good cause dispenses with their personal appearance.

CRC Rule 7.955(a)

requires courts to use “a reasonable fee standard” when approving and allowing the amount of attorneys’ fees payable from money to be paid for the benefit of a minor and requires that courts “give consideration to the terms of any representation agreement made between the attorney and the representative of the minor and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor contemplated that the attorneys’ fee would be affected by later events.” CRC Rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney’s fee. CRC Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney’s fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

Discussion

General Requirements

Petitioner has submitted a Judicial Council form MC-350 on behalf of Claimant, signed by Petitioner, the annuity documents, a Proposed Order on Form MC-351, and a Proposed Order to Deposit Funds in Blocked Account on Form MC-355.

Petition (Form MC-350)

Item 4c. – Persons Involved

Item 4c fails to identify David

Lopez who is later identified as a cross-defendant receiving \$15,000.00.

Petitioner shall submit an amended petition including David Lopez as a person involved under item 4c before the Court will approve the compromise.

Item 8 – Extent of Injuries and Recovery

Attachment 8 is missing. Item 8 requires a physician's report containing a diagnosis or prognosis and a report of the claimant's current condition. Petitioner shall submit a physician declaration or medical report addressing Claimant's diagnosis or prognosis and present condition before the Court will approve the compromise.

Item 9 – Petitioner's Understanding of the Approval of the Petition

Item 9 requires Petitioner to state she understands that she made a careful and diligent inquiry and investigation into the facts and circumstances of the accident and that if the compromise proposed in the petition is approved by the court and consummated, Claimant will never be able to recover any more compensation from the settling defendants. Item 9 remains unchecked. Petitioner shall submit an amended petition with item 9 checked off before the Court will approve the compromise.

Attachment 11b(6) – Apportionment

Item 11b(6) requires that Petitioner provide reasons for the apportionment of the settlement payments between the claimant and each other plaintiff or claimant named under item 11b(5). Although Petitioner included attachment 11b(6), Petitioner only explains why Cross-Defendant David Lopez is receiving \$15,000.00 but did not explain why the settlement payments are apportioned the way they are. Petitioner shall submit an amended attachment 11b(6) explaining the apportionment of the settlement before the Court will approve the compromise.

Proposed Order (Form MC-351)

Item 9a – Orders Concerning Blocked Accounts

Item 9a requires Petitioner to specify name, branch, and address of each depository, and the amount of each account. Petitioner did not include the amount for the Bank of America account.

Conclusion

The Court CONTINUES this hearing to October 5, 2026, at 9:30am to allow Petitioner to correct the deficiencies identified in this Order.